

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 2299

By: Hilbert

AS INTRODUCED

An Act relating to conventions pursuant to Article V of the United States Constitution; defining terms; prohibiting certain conduct; prescribing criminal penalties; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 601 of Title 21, unless there is created a duplication in numbering, reads as follows:

As used in this act:

1. "Commissioner" means a person selected by resolution of the Legislature to represent this state at an Article V convention for proposing amendments;

2. "Commission" means the resolution or other measure adopted by the Legislature which sets forth the names of the appointed commissioners, the scope of their authority, and other instructions; and

1 3. "Interim commissioner" means a person selected to fill a
2 vacancy in the delegation.

3 SECTION 2. NEW LAW A new section of law to be codified
4 in the Oklahoma Statutes as Section 602 of Title 21, unless there is
5 created a duplication in numbering, reads as follows:

6 A. A commissioner or interim commissioner to a convention for
7 proposing amendments held under Article V of the United States
8 Constitution shall not exceed the scope of his or her authority when
9 acting as a commissioner or interim commissioner. A commissioner or
10 interim commissioner exceeds the scope of his or her authority by
11 voting or otherwise acting beyond the authority granted in his or
12 her commission, as altered by any duly issued subsequent
13 instructions provided before the vote or other action.

14 B. A commissioner or interim commissioner who exceeds the scope
15 of his or her authority shall, upon conviction, be guilty of a
16 felony.

17 SECTION 3. NEW LAW A new section of law to be codified
18 in the Oklahoma Statutes as Section 603 of Title 21, unless there is
19 created a duplication in numbering, reads as follows:

20 Any individual who, while not being privileged by law, knowingly
21 bribes, threatens, intimidates, or obstructs a commissioner, interim
22 commissioner, or a person representing another state in the capacity
23 of a commissioner or interim commissioner at a convention held in
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1 this state, in the performance of his or her duties, or attempts to
2 do so, shall, upon conviction, be guilty of a felony.

3 SECTION 4. This act shall become effective November 1, 2025.

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